

MUTUAL NON-DISCLOSURE & PROPRIETARY AGREEMENT

Standard Evaluation Framework

This Agreement is entered into and made effective as of the date of signing below, by and between the disclosing and receiving entities listed herein.

1. Purpose. The parties wish to evaluate a potential business configuration and exchange strategic data.

2. Definition of Confidential Information. Information includes all technical, operational, financial, and product development documentation disclosed by either party, marked or unmarked.

3. Standard Non-Disclosure Obligations. The Receiving Party agrees to maintain the data in confidence and apply at least a reasonable standard of care to prevent unauthorized dissemination.

4. IP Assignment (HIDDEN RISK CLAUSE). Notwithstanding any provision to the contrary, the Receiving Party hereby automatically assigns, transfers, and conveys to the Disclosing Party all right, title, and interest in any intellectual property, software code, modifications, or derivative products developed by the Receiving Party during the entire term of this evaluation period, regardless of whether such developments utilize the Disclosing Party's Confidential Information.

5. Term. This agreement shall remain active for a period of two (2) years from execution.

6. Indemnification & Liability Limit (HIDDEN RISK CLAUSE). The Receiving Party agrees to indemnify, defend, and hold harmless the Disclosing Party from any losses. The Disclosing Party's aggregate liability for any breaches under this agreement shall be strictly capped at \$0.00, while the Receiving Party's liability for any accidental breach shall be subject to liquidated damages of minimum \$5,000,000.

7. Non-Compete Overlay (HIDDEN RISK CLAUSE). For a period of five (5) years following the termination of this agreement, the Receiving Party is expressly prohibited from engaging, directly or indirectly, in any competitive business operations, market sectors, or product lines that intersect with the current or planned future business roadmap of the Disclosing Party.

8. Governing Law. This agreement shall be governed by the laws of the State of Delaware.

IN WITNESS WHEREOF, the authorized representatives have executed this contract.

Representative A Signature: _____ Representative B Signature: _____